

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV2025-0929

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Nadir Malik's opposition to defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Based on plaintiff's opposition stating that he recently retained new counsel who reviewed his case file and prepared a second amended complaint that addresses each of the deficiencies identified in defendant's motion for judgment on the pleadings, the Court will allow plaintiff time to file a motion to file a second amended complaint. (Code Civ. Proc., § 473, subd. (a); Opp., p. 2; Warwick Decl., ¶¶ 2-13.) The Court finds that if a second amended complaint is filed, defendant's motion for judgment on the pleadings will be moot. If a second amended complaint is not filed, the Court will rule on defendant's motion for judgment on the pleadings. Therefore, on the Court's own motion, defendant's motion for judgment on the pleadings is **CONTINUED to May 19, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: Sweeten v. GRV dba Grand River Villa et al.
Case No. CV2025-3756

Hearing Date: March 25, 2026 **Department Fourteen** **9:00 a.m.**

The Court declines to rule on defendants GRV, dba Grand River Villa and Ciminocare's evidentiary objections as the Court did not rely upon the paragraphs challenged in determining this motion.

Defendants' motion to compel arbitration is **GRANTED IN PART**. (9 U.S.C. § 2 et seq.; Code Civ. Proc., §§ 1281, 1281.2.) The Court finds that the issues of the validity and enforceability of the arbitration agreement between the parties was delegated to an arbitrator for determination. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892 [parties can agree to arbitrate the gateway question of arbitrability]; *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 252 [procedural questions which grow out of the dispute and bear on its final disposition, such as a challenge to the enforceability of the entire contract in which an arbitration clause appears, is presumptively for the arbitrator and not for the judge to decide]; see *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357 [state law principles govern the enforceability of arbitration agreements even where the FAA applies]; Soto Decl., ¶¶ 3 – 5, Exhibits A, B.)

This matter is **STAYED** pending the outcome of the arbitration on these issues. (Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.